

STATE OF NEW YORK

3246--B

2025-2026 Regular Sessions

IN SENATE

January 24, 2025

Introduced by Sen. COONEY -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Consumer Protection in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to certain rental vehicle protections; and to amend chapter 109 of the laws of 2018 amending the general business law relating to certain rental vehicle protections, in relation to the effectiveness thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (a) of subdivision 2 of section 396-z of the
2 general business law, as amended by chapter 109 of the laws of 2018, is
3 amended to read as follows:
4 (a) A rental vehicle company shall not charge more than the following
5 amounts per full or partial twenty-four hour rental day for optional
6 vehicle protection:
7 (i) nine dollars if the manufacturer's suggested retail price of the
8 rental vehicle is not greater than twenty thousand dollars;
9 (ii) twelve dollars if the manufacturer's suggested retail price of
10 the rental vehicle is greater than twenty thousand dollars but not
11 greater than thirty-five thousand dollars;
12 (iii) fifteen dollars if the manufacturer's suggested retail price of
13 the rental vehicle is greater than thirty-five thousand dollars but not
14 greater than fifty thousand dollars; and
15 (iv) the amount that may be charged for a vehicle with a manufactur-
16 er's suggested value of greater than fifty thousand dollars shall not be
17 subject to a maximum dollar amount but shall be subject to the fair
18 market value as determined by the rental vehicle company.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD03267-03-6

1 (v) Starting January first, two thousand twenty-seven, and each Janu-
2 ary thereafter, the rate caps set forth in subparagraphs (i), (ii) and
3 (iii) of this paragraph shall be increased based on the increase in the
4 Consumer Price Index for All Urban Consumers (CPI-U) over the previous
5 year as reported by the United States Bureau of Labor Statistics.

6 § 2. Subdivision (a) of section 4 of chapter 109 of the laws of 2018
7 amending the general business law relating to certain rental vehicle
8 protections, as amended by chapter 163 of the laws of 2023, is amended
9 to read as follows:

10 (a) section one of this act shall take effect on the ninetieth day
11 after it shall have become a law [~~and shall expire and be deemed~~
12 ~~repealed June 30, 2028~~];

13 § 3. This act shall take effect immediately.